

		law unavailable at the time of making the motions. Nguyen’s claims the Court failed to apply the liberal policy in favor of allowing amendment, the Court failed to apply the ADA to Nguyen’s motions, the ruling failed to properly identify prejudice, and considered the merits of the pleadings are similarly attempts to reargue the merits of the motions and are not new or different facts. Additionally, Nguyen’s declaration in support of this Motion fails to state “what application was made before, when and to what judge, what order or decisions were made” (Code Civ. Proc., § 1008(a).) Thus, the Motion is procedurally defective. Accordingly, Nguyen’s Motion is denied.
8.	MAKA VS. AMERICAN HONDA MOTOR CO. INC. 2023-01325822	MOTION FOR ATTORNEY FEES Plaintiffs Lueleni Fetongi Maka and Mailah Miranda Solia’s Motion for Attorney Fees is GRANTED in the reduced amount of \$27,032. This Song-Beverly Act case, filed on 5/17/23, arises from Plaintiffs’ purchase of a 2018 Honda Pilot on 4/9/21. Notice of Settlement was filed 7/8/24. Defendant’s objections are SUSTAINED as to Nos. 39-49. The remaining objections are OVERRULED. <u>Legal Standard</u> If a plaintiff prevails in a Song-Beverly action, they “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) Courts use the lodestar adjustment method to determine the amount of attorney’s fees to award in Song-Beverly actions. (<i>Reynolds v. Ford Motor Co.</i> (2020) 47 Cal.App.5th 1105, 1112.) The lodestar figure is “based on the careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.” (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1131-1132 (<i>Ketchum</i>).) That figure may be increased or decreased by a “multiplier” based on factors, including (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (<i>Id.</i> at p. 1132; <i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 247.) In challenging an attorney fees request, the burden falls upon the challenging party to point to specific items challenged, with

arguments and citation to evidence. General claims that fees are excessive are insufficient. (*Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association* (2008) 163 Cal.App.4th 550, 564.) A party cannot litigate tenaciously and then complain about the time incurred. (*Peak-Las Positas Partners v. Bollag* (2009) 172 Cal.App.4th 101, 114.)

Application:

Plaintiffs seek \$33,211.25 in attorney fees, consisting of \$23,369.00 in attorneys' fees, a 1.25 multiplier (i.e., \$5,842.25), and additional \$4,000 to review Defendant's opposition to the instant motion, draft the reply and attend the hearing on this motion.

The request is based on 65 hours of work, with counsel's rates between \$350-550/hour.

Defendant contends Plaintiffs' fee request is excessive because this case required limited workup, no depositions or vehicle inspection yet Plaintiffs' counsel overstaffed the case with six attorneys without billing any paralegal or administrative rates.

While the use of six attorneys in this case may suggest overstaffing, the Court has carefully reviewed the billing records and does not find the entries by the six different attorneys to have been duplicative. The Court further finds that about 85% of the total time was billed by just two attorneys: Donald Mahnke (2023 rate of \$350/hour and 2024 rate of \$400/hour) and David Derderian (2024 rate of \$350/hour). Thus, the Court finds the case was not overstaffed.

Defendant includes a table in its supporting declaration, which it contends sets forth its specific objections, requested reductions, and proposed reasonable rates and times that it contends are reasonable. The objections in the table include "Excessive," "Unnecessary," "Administrative," "Duplicative," and "Compound." However, the table does not include any reasoning for these objections. Nor does Defendant cite to, refer to, or argue the basis for these objections in its opposition.

Defendant's opposition specifically attacks only four entries. First, Defendant attacks an entry for 2.1 hours on 8/18/23 arguing it is excessive because it was for review of Defendant's routine document production that is regularly produced in Song-Beverly cases. The billing indicates the attorney reviewed 1,368 documents. The Court finds 2.1 hours to review 1,368 documents is reasonable.

Next, Defendant attacks an entry for 0.7 hours on 1/8/24 as vague, excessive and unnecessary contending it was a simple case review. Plaintiffs explain this entry was reasonable and necessary because the previous handling attorney was reassigned and the new handling attorney needed to get up to speed on the case. The Court recognizes

that staffing changes may become necessary during the course of litigation. Given the case review was limited to less than an hour, the Court finds the entry is reasonable.

Next, Defendant challenges an entry of 0.9 hours on 6/10/24 to review Defendant's 2-page 998 Offer and prepare a recommendation to their client arguing the entry is compound. Defendant does not explain what it means by "compound". Nevertheless, given the importance of a 998 offer to compromise, less than an hour to review it and prepare a recommendation is reasonable.

Lastly, Defendant challenges 6.2 hours to prepare the instant motion billed over three entries on 1/12/26 and 1/13/26 arguing it is excessive since the motion is virtually identical to hundreds of prior fee motions prepared in past cases by this firm. Defendant asserts preparation of the motion was billed by a senior partner and an associate. However, the billing shows only one associate billed for the motion. Additionally, Defendant failed to establish this motion is identical to prior motions filed by this firm, for example, by attaching a few such identical motions to the opposition. Even if counsel used templates to prepare the motion and supporting documents, counsel still needed to spend time editing the templates to add the facts and arguments applicable to this case. It is reasonable for an associate to spend 6.2 hours at a rate of \$395.00/hour to do so. "The fees incurred in preparing a motion for fees are properly includable in the award." (*McKenzie v. Ford Motor Co.* (2015) 238 Cal.App.4th 695, 703; *Ketchum, supra*, 24 Cal.4th at 1133 ["an attorney fee award should ordinarily include compensation for *all* the hours *reasonably spent*, including those relating solely to the fee"].)

In their reply, Plaintiffs slightly reduced the amount they seek for reviewing Defendant's opposition and drafting the reply to \$2,673 (5.4 hours at \$495/hour) and anticipate incurring additional fees of \$990 (2 hours at \$495/hour) to prepare for and attend the hearing. This totals \$3,663. Defendant did not challenge these tasks.

Given the relative simplicity of this matter, the Court finds that 65 hours of attorney work was reasonable to review records, prepare the complaint, prepare and respond to discovery, review and respond to settlement offer, and prepare the instant motion is reasonable. The Court also finds 7.4 hours reviewing Defendant's opposition, drafting the reply, and appearing at the hearing is reasonable.

The Court further finds \$350-550 are reasonable hourly rates for counsel, given the nature of the work in this lawsuit and the evidence presented by Defendant, including the *Laffey* Matrix and minute orders from courts in Orange County and Los Angeles County approving Defendants rates. (See *Tukes v. Richard* (2022) 81 Cal.App.5th 1, 17 18 [holding it is within the courts discretion to accept *Laffey* Matrix as evidence to help determine reasonable

		rates]; see also <i>Margolin v. Regional Planning Com.</i> (1982) 134 Cal.App.3d 999, 1005 [evidence of fees awarded to counsel in other litigation is admissible and relevant, particularly in determining reasonable value of services rendered by public interest law firm that did not bill its clients].) Plaintiffs seek a multiplier of 1.25 (i.e., \$5,842.25). This simple lemon law case did not involve novel or complex issues nor did it require a high level of lawyering. Counsel has not established that this case prevented them from taking other work. Therefore, a multiplier is not warranted. The motion is granted. The Court awards \$27,032 in fees.
9.	TRAN VS. HN INJURY LAWYERS 2025-01485434	DEMURRER TO AMENDED COMPLAINT Defendants Hess & Nghiem, APC; Edward W. Hess, Jr.; and Phillip B. Nghiem’s Demurrer to the First Amended Complaint (“FAC”) is SUSTAINED with 20 days leave to amend. Defendants demur to the FAC and each cause of action on the grounds that they are barred by res judicata and the applicable statute of limitations. Defendants also contend the new allegations of misconduct in the FAC should be disregarded as sham pleading. Defendants’ request for judicial notice (ROA 40) is GRANTED. On 9/20/24, plaintiff Trung N. Tran filed a small claims action against Defendants (sued as “HN Injury Lawyers”) in Orange County Superior Court, case no. 30-2024-01426477 (“Small Claims Action”). (Request for Judicial Notice (“RJN”), Ex. 4.) In the smalls claims Complaint, Plaintiff alleged Defendant owed him \$5,000 because on 11/8/23, he approved the settlement of \$75,000 with the condition that he at least receive 30% of the settlement, but he only received \$17,500. (RJN, Ex. 4.) After trial, judgment was entered on 3/26/25, in Defendants favor finding that Defendants did not owe any money on Plaintiff’s claim. (RJN, Exs. 1-2.) The court concluded that “[t]he retainer agreement comports with California law governing contingent fee agreements. Plaintiff failed to meet his burden that he was misled.” (RJN, Ex. 2.) On 5/27/25, Plaintiff, in pro per, commenced this action against “HN Injury Lawyers”. The original Complaint, as supplemented by an accompanying filing titled “DECLARATION”, alleged breach of Attorney-Client Agreement, executed on 10/4/19, and fraud. (ROA 1, 6, ¶ 1, Ex. A.) Plaintiff alleged that because the underlying matter settled before any litigation commenced, he was entitled to a contingent fee of 33 1/3% under the agreement. (ROA 1, 6, ¶¶ 2-3, Ex. A.) Nevertheless, Defendants applied a 40% fee and imposed an extra legal fee of \$4,194 in breach of the agreement. (ROA 1, 6, ¶¶ 3-4, Ex. B.)